

26STCV16279 26STCV16279

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-13
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Case Number: 26STCV16279 Hearing Date: August 13, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ROBERT AHN, an individual,
and derivatively on behalf of RX2 PARTNERS, LLC, a California limited liability
company, derivatively on behalf of 6TH STREET PARTNERS, LLC, a California limited
liability company,

Plaintiff,

vs.

ROBERT KIM, et al.,

Defendants.

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CASE NO.: 26STCV16279

[TENTATIVE] ORDER GRANTING MOTION FOR STAY;
CONTINUING MOTION FOR APPOINTMENT OF PROVISIONAL MANAGER

Dept. 506

8:30 a.m.

August 13, 2026

On May 20, 2026, Plaintiff Robert Ahn, an individual, and derivatively on behalf of RX2 Partners LLC, derivatively on behalf of 6th Street Partners LLC, filed this action against Defendants Robert Kim, RK Hospitality LLC, Ktown Hospitality LLC, Ktown Pasta LLC, RX2 Partners LLC, and 6th Street Partners LLC.

On July 8, 2026, Defendant Robert Kim filed a motion to compel arbitration, and on July 27, 2026, he filed a request to stay proceedings pending a ruling on his motion.

On July 9, 2026, Plaintiff filed a motion for appointment of a provisional manager for RX2 Partners LLC.

The Court shall, upon motion of a party to such action or proceeding, stay the action

or proceeding until the application for an order to arbitrate is determined. (Code Civ. Proc., § 1281.4.)

The

Complaint's third, fourth, seventh, and eighth causes of action are brought jointly against Kim and other Defendants. Accordingly, the arbitrable issue is not severable, and the stay must be with respect to the entire action.

The

motion to stay is GRANTED. The entire action is STAYED pending the resolution of Kim's motion to compel arbitration.

The

Motion for Order for Appointment of Provisional Manager is CONTINUED to _____ at 8:30 a.m. The Case Management Conference scheduled for 10/22/2026 is also CONTINUED to _____ at 8:30 a.m.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 13th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court